



POLICE DEPARTMENT

December 27, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202306857 (Incident Date: July 4, 2023) regarding Deputy Inspector Stephen Spataro, Tax No. 939513 (PODS No. C-032167)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202306857, pertaining to Deputy Inspector Stephen Spataro. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against said Deputy Inspector would be detrimental to the Police Department's disciplinary process.

In this matter, Deputy Inspector Spataro was alleged to have interfered with an individual's use of a recording device. The individual commenced his recording while interacting with police during a vehicle stop. Moments after his arrest, however, Deputy Inspector Spataro ended the recording and handed the individual's phone to the arresting officer. In certain situations, such as when an individual is in violation of the law and placed under arrest, the right to record *may* be limited. In this case, the individual recorded for approximately eight (8) minutes until he was required to be removed from the scene for arrest processing.

The intent behind removing a cell phone once a prisoner is in police custody, and further ceasing the recording of such device, is not to inhibit an individual's right to record. At this point, common practice and Department policy dictates that when an individual is taken into custody, their property is removed. This can be for safety reasons, or as it was here, for safekeeping throughout the arrest process. Furthermore, prisoners are not permitted to carry personal communications devices with them while being held in detention facilities, however officers continue to capture the transport to the precinct up until lodging in the cell area on body camera. Thus, the individual's interaction with police is still memorialized.

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Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to impose no disciplinary action for the alleged misconduct.

Sincerely,

A handwritten signature in black ink, appearing to read "C. Contrera", is written over the printed name.

Craig Contrera

Inspector

Executive Officer

Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
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MOHAMMAD KHALID
INTERIM CHAIR

December 30, 2024

The Honorable Jessica Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, New York 10038

Re: CCRB v. Deputy Inspector Stephen Spataro, Tax No. 939513
CCRB Disciplinary Case No.: 202306857 (PODS No. C-032167)

Dear Commissioner Tisch:

I am writing in response to the letter from Inspector Craig Contrera, dated December 27, 2024, informing the Civilian Complaint Review Board (“CCRB”) of your intent to dismiss the Charges and Specifications against Deputy Inspector Spataro. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department. I am responding to Inspector Contrera’s notification.

Inspector Contrera stated that The Police Commissioner does not agree with the CCRB’s substantiation of the allegations on this matter. The Police Commissioner determined that while Inspector Spataro ended an individual’s recording of his interaction with the police during a vehicle stop, it was done moments after his arrest for the purpose of removing property for safekeeping during the arrest process.

According to NYPD Administrative Guide Procedure 304-21, individuals have a right to lawfully record police activity including, but not limited to detentions, searches, arrests or uses of force. This right to record can be limited based upon officer safety concerns or when a violation of law is committed. Paragraph 1(a) specifically prohibits members of the service from intentionally preventing, or attempting to prevent, an individual from recording police activities, or seizing property or instruments used by an individual to record police activities. No where does the department’s procedural policy indicate that it is permissible to reach inside of an individual’s vehicle and end the video recording on his device, as DI Spataro states that he did here, regardless of the individual’s arrest. Per policy, the arrest of an individual is a recordable event that should not be prevented absent any specific safety concern. The complainant’s cellphone video recording did not pose any safety risk that would reasonably allow DI Spataro to limit or end the recording of police activity. Furthermore, members of service are not obligated to end an individual’s video recording upon their arrest.

While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, based upon the foregoing, it is respectfully requested that you permit CCRB to pursue Charges and Specifications against Deputy Inspector Spataro in this matter.

Respectfully submitted,

Andre Applewhite

Andre Applewhite
Chief Prosecutor
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

December 31, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

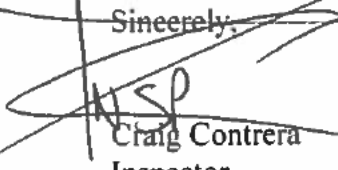
Re: CCRB Case No. 202306857 (Incident Date: July 4, 2023) regarding Deputy Inspector Stephen Spataro, Tax No. 939513 (PODS No. C-032167)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated December 30, 2024, regarding the CCRB case involving Deputy Inspector Stephen Spataro and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Deputy Inspector Spataro for the reasons expressed in my December 27, 2024 letter.

Therefore, the Police Commissioner affirms her decision to exercise Provision Two of the Memorandum of Understanding and now directs that no disciplinary action be imposed for the alleged misconduct against Deputy Inspector Spataro.

Sincerely,


Craig Contrera
Inspector
Executive Officer
Police Commissioner's Office